

SOLVED PRACTICE WORKBOOK

Human Rights, Civil Liberties and Democratic Rights - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Human Rights, Civil Liberties and Democratic Rights

TEN-SESSION CORE PATH • PRACTICE • OPTIONAL ADVANCED • REGISTER NOTES

1 Human Rights, Civil Liberties and Democratic Rights

2 Hohfeld and the Negative-Positive Obligation Grid

3 Natural, Legal, Historical and Personality Theories

4 Locke, Paine, Green and Barker

5 Burke, Laski, Marx and Nozick

6 Theses, Directives and Rights-Answer Architecture

7 MacIntyre and Accurate Feminist Critiques

8 Generations of Rights and Indivisibility

9 Nuremberg, UDHR, ICCPR and ICESCR

10 Restrictions, Emergencies, Horizontal Effect and Protection

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Human Rights, Civil Liberties and Democratic Rights - Solved Practice Workbook

Generation: learner-v2:g2 **PYQ ownership:** Every verified question below retains the primary owner recorded in the source ledger.

BASIC MCQS / REMEDIATION

MCQ 1

Which option correctly states the source-grounded meaning or position associated with **Human rights**?

- A. rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).
- B. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gauba, PDF p.345).
- C. A contested grouping of collective or solidarity claims.
- D. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.

Answer: A

Explanation: The canonical Basic owner pairs **Human rights** with **rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 2

Which category attaches to persons through dignity rather than depending primarily on citizenship?

- A. Marx
- B. Human rights
- C. "Second generation"
- D. Negative-right dimension

Answer: B

Explanation: The canonical Basic owner pairs **rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338)** with **Human rights**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 3

Which option correctly states the source-grounded meaning or position associated with **Rights**?

- A. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gauba, PDF p.345).
- B. A contested grouping of collective or solidarity claims.
- C. justified normative or legal positions. Hohfeld's vocabulary distinguishes claim-rights, liberties, powers and immunities; Gauba's chapter especially emphasises claims restraining arbitrary state power and requiring conditions for a better life (PDF pp.339-340).
- D. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.

Answer: C

Explanation: The canonical Basic owner pairs **Rights** with **justified normative or legal positions**. Hohfeld's vocabulary distinguishes claim-rights, liberties, powers and immunities; Gauba's chapter especially emphasises claims restraining arbitrary state power and requiring conditions for a better life (PDF pp.339-340). The other options are valid source terms or statements, but belong to different pairings.

MCQ 4

Which concept covers justified normative or legal positions that must be analysed by holder, content and correlative relation?

- A. Robert Nozick
- B. "Third generation"
- C. Positive-right dimension
- D. Rights

Answer: D

Explanation: The canonical Basic owner pairs **justified normative or legal positions**. Hohfeld's vocabulary distinguishes claim-rights, liberties, powers and immunities; Gauba's chapter especially emphasises claims restraining arbitrary state power and requiring conditions for a better life (PDF pp.339-340). with **Rights**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 5

Which option correctly states the source-grounded meaning or position associated with **Negative-right dimension**?

- A. a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
- B. grounds rights in life, liberty and property and permits resistance when government seriously breaches or forfeits its protective trust, not whenever it imperfectly performs a duty (PDF pp.341-342, 365).
- C. defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).
- D. A contested grouping of collective or solidarity claims.

Answer: A

Explanation: The canonical Basic owner pairs **Negative-right dimension** with **a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341)**. It is a dimension of obligation, not a sealed class of rights. The other options are valid source terms or statements, but belong to different pairings.

MCQ 6

Which obligation dimension requires duty-bearers to refrain from interference?

- A. Alasdair MacIntyre
- B. Negative-right dimension
- C. Restriction test
- D. Civil liberties

Answer: B

Explanation: The canonical Basic owner pairs **a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341)**. It is a dimension of obligation, not a sealed class of rights. with **Negative-right dimension**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 7

Which option correctly states the source-grounded meaning or position associated with **Positive-right dimension**?

- A. Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).

B. treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343).

C. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.

D. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective exercise may require state protection from private coercion (PDF pp.361-363).

Answer: C

Explanation: The canonical Basic owner pairs **Positive-right dimension** with **a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341)**. Many civil liberties also require positive protection against private interference. The other options are valid source terms or statements, but belong to different pairings.

MCQ 8

Which obligation dimension requires protection or provision such as courts, education or legal aid?

- A. Firestone-Rowbotham contrast
- B. Human rights
- C. Democratic rights
- D. Positive-right dimension

Answer: D

Explanation: The canonical Basic owner pairs **a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341)**. Many civil liberties also require positive protection against private interference. with **Positive-right dimension**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 9

Which option correctly states the source-grounded meaning or position associated with **Civil liberties**?

- A. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective exercise may require state protection from private coercion (PDF pp.361-363).
- B. Bentham treats rights as creatures of law - they exist only once the state recognizes and enforces them (PDF pp.344-345).
- C. a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaub, PDF p.345).
- D. Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour.

Answer: A

Explanation: The canonical Basic owner pairs **Civil liberties** with **legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective exercise may require state protection from private coercion (PDF pp.361-363)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 10

Which category protects speech, association, movement, fair trial and personal freedom against arbitrary public power?

- A. "First generation"
- B. Civil liberties
- C. Rights
- D. Rights and duties

Answer: B

Explanation: The canonical Basic owner pairs **legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective exercise may require state protection from private coercion (PDF pp.361-363)**. with **Civil liberties**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 11

Which option correctly states the source-grounded meaning or position associated with **Democratic rights**?

- A. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gaub, PDF p.345).
- B. A contested grouping of collective or solidarity claims.
- C. participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).
- D. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.

Answer: C

Explanation: The canonical Basic owner pairs **Democratic rights** with **participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 12

Which category enables eligible citizens to vote, organise, seek office and shape collective decisions?

- A. "Second generation"
- B. Negative-right dimension
- C. Moral claim vs full enforceable right
- D. Democratic rights

Answer: D

Explanation: The canonical Basic owner pairs **participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362)**. with **Democratic rights**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 13

Which option correctly states the source-grounded meaning or position associated with **Rights and duties**?

- A. every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-duties thesis is social-ethical rather than strict Hohfeldian correlativity.
- B. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gaub, PDF p.345).
- C. A contested grouping of collective or solidarity claims.
- D. restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.

Answer: A

Explanation: The canonical Basic owner pairs **Rights and duties** with **every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation**. Laski's wider

rights-and-duties thesis is social-ethical rather than strict Hohfeldian correlativity. The other options are valid source terms or statements, but belong to different pairings.

MCQ 14

Which relation is strict for Hohfeldian claim-rights but cannot be generalised identically to every liberty?

- A. "Third generation"
- B. Rights and duties
- C. Positive-right dimension
- D. Natural-rights theory

Answer: B

Explanation: The canonical Basic owner pairs **every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-duties thesis is social-ethical rather than strict Hohfeldian correlativity. with Rights and duties.** The other options are valid source terms or statements, but belong to different pairings.

MCQ 15

Which option correctly states the source-grounded meaning or position associated with **Moral claim vs full enforceable right**?

- A. grounds rights in life, liberty and property and permits resistance when government seriously breaches or forfeits its protective trust, not whenever it imperfectly performs a duty (PDF pp.341-342, 365).
- B. defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).
- C. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gaub, PDF p.345).
- D. A contested grouping of collective or solidarity claims.

Answer: C

Explanation: The canonical Basic owner pairs **Moral claim vs full enforceable right** with **personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gaub, PDF p.345).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 16

Which distinction separates ethical justification from legal recognition, remedy and effective access?

- A. Restriction test
- B. Civil liberties
- C. Legal-rights theory
- D. Moral claim vs full enforceable right

Answer: D

Explanation: The canonical Basic owner pairs **personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gaub, PDF p.345).** with **Moral claim vs full enforceable right.** The other options are valid source terms or statements, but belong to different pairings.

MCQ 17

Which option correctly states the source-grounded meaning or position associated with **Natural-rights theory**?

- A. Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).
- B. restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.
- C. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective exercise may require state protection from private coercion (PDF pp.361-363).
- D. a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaub, PDF p.345).

Answer: A

Explanation: The canonical Basic owner pairs **Natural-rights theory** with **Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 18

Which theory gives rights moral force prior to enactment and thereby permits criticism of unjust law?

- A. Human rights
- B. Natural-rights theory
- C. Democratic rights
- D. Historical-rights theory

Answer: B

Explanation: The canonical Basic owner pairs **Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365)** with **Natural-rights theory**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 19

Which option correctly states the source-grounded meaning or position associated with **Legal-rights theory**?

- A. Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour.
- B. A contested grouping of collective or solidarity claims.
- C. Bentham treats rights as creatures of law - they exist only once the state recognizes and enforces them (PDF pp.344-345).
- D. restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.

Answer: C

Explanation: The canonical Basic owner pairs **Legal-rights theory** with **Bentham treats rights as creatures of law - they exist only once the state recognizes and enforces them (PDF pp.344-345)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 20

Which theory makes positive definition, institutional guarantee and enforceability central to a right?

- A. Rights
- B. Rights and duties
- C. Ideal/personality (Green, Barker) rights theory
- D. Legal-rights theory

Answer: D

Explanation: The canonical Basic owner pairs **Bentham treats rights as creatures of law - they exist only once the state recognizes and enforces them (PDF pp.344-345)**, with **Legal-rights theory**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 21

Which option correctly states the source-grounded meaning or position associated with **Historical-rights theory**?

- A. Burke roots rights in prescriptive inheritance and evolved constitutional practice rather than abstract declaration (PDF pp.346-347).
- B. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gaub, PDF p.345).
- C. A contested grouping of collective or solidarity claims.
- D. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.

Answer: A

Explanation: The canonical Basic owner pairs **Historical-rights theory** with **Burke roots rights in prescriptive inheritance and evolved constitutional practice rather than abstract declaration (PDF pp.346-347)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 22

Which theory grounds rights in inherited practice, prescription and social evolution?

- A. Negative-right dimension
- B. Historical-rights theory
- C. Moral claim vs full enforceable right
- D. Locke

Answer: B

Explanation: The canonical Basic owner pairs **Burke roots rights in prescriptive inheritance and evolved constitutional practice rather than abstract declaration (PDF pp.346-347)**, with **Historical-rights theory**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 23

Which option correctly states the source-grounded meaning or position associated with **Ideal/personality (Green, Barker) rights theory**?

- A. A contested grouping of collective or solidarity claims.
- B. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.
- C. Green ties rights to conditions needed for moral personality; Barker's full right needs both personality-grounding and legal guarantee, an either-alone yields only a quasi-right (PDF pp.342-343, 345).
- D. restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.

Answer: C

Explanation: The canonical Basic owner pairs **Ideal/personality (Green, Barker) rights theory** with **Green ties rights to conditions needed for moral personality; Barker's full right needs both personality-grounding and legal guarantee, an either-alone yields only a quasi-right (PDF pp.342-343, 345)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 24

Which theory treats rights as conditions of moral personality that still require social and legal recognition?

- A. Positive-right dimension
- B. Natural-rights theory
- C. T.H. Green
- D. Ideal/personality (Green, Barker) rights theory

Answer: D

Explanation: The canonical Basic owner pairs **Green ties rights to conditions needed for moral personality; Barker's full right needs both personality-grounding and legal guarantee, an either-alone yields only a quasi-right (PDF pp.342-343, 345).** with **Ideal/personality (Green, Barker) rights theory**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 25

Which option correctly states the source-grounded meaning or position associated with **Locke**?

- A. grounds rights in life, liberty and property and permits resistance when government seriously breaches or forfeits its protective trust, not whenever it imperfectly performs a duty (PDF pp.341-342, 365).
- B. defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).
- C. A contested grouping of collective or solidarity claims.
- D. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.

Answer: A

Explanation: The canonical Basic owner pairs **Locke** with **grounds rights in life, liberty and property and permits resistance when government seriously breaches or forfeits its protective trust, not whenever it imperfectly performs a duty (PDF pp.341-342, 365).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 26

Who grounds rights in life, liberty and property and treats government as a limited trust?

- A. Civil liberties
- B. Locke
- C. Legal-rights theory
- D. Ernest Barker

Answer: B

Explanation: The canonical Basic owner pairs **grounds rights in life, liberty and property and permits resistance when government seriously breaches or forfeits its protective trust, not whenever it imperfectly performs a duty (PDF pp.341-342, 365).** with **Locke**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 27

Which option correctly states the source-grounded meaning or position associated with **T.H. Green**?

- A. challenges the grounding of abstract universal rights-talk; he does not simply argue that community overrides every individual right (PDF pp.365-366).
- B. restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.

C. treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343).

D. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective exercise may require state protection from private coercion (PDF pp.361-363).

Answer: C

Explanation: The canonical Basic owner pairs **T.H. Green** with **treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 28

Who links rights to social recognition, moral personality and the common good?

- A. Democratic rights
- B. Historical-rights theory
- C. Laski
- D. T.H. Green

Answer: D

Explanation: The canonical Basic owner pairs **treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343)** with **T.H. Green**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 29

Which option correctly states the source-grounded meaning or position associated with **Ernest Barker**?

- A. a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaubu, PDF p.345).
- B. Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour.
- C. rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).
- D. participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).

Answer: A

Explanation: The canonical Basic owner pairs **Ernest Barker** with **a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaubu, PDF p.345)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 30

Who joins personality-grounded moral validity to the need for legal guarantee?

- A. Rights and duties
- B. Ernest Barker
- C. Ideal/personality (Green, Barker) rights theory
- D. Marx

Answer: B

Explanation: The canonical Basic owner pairs **a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaubu, PDF p.345)** with **Ernest Barker**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 31

Which option correctly states the source-grounded meaning or position associated with **Laski**?

- A. Civil and political rights such as speech, movement, fair trial and voting.
- B. justified normative or legal positions. Hohfeld's vocabulary distinguishes claim-rights, liberties, powers and immunities; Gauba's chapter especially emphasises claims restraining arbitrary state power and requiring conditions for a better life (PDF pp.339-340).
- C. gives a social-democratic account in which rights are conditions for personality, equality and common welfare and carry social responsibilities; this is not strict Hohfeldian correlativity (PDF pp.348-353).
- D. Green ties rights to conditions needed for moral personality; Barker's full right needs both personality-grounding and legal guarantee, an either-alone yields only a quasi-right (PDF pp.342-343, 345).

Answer: C

Explanation: The canonical Basic owner pairs **Laski** with **gives a social-democratic account in which rights are conditions for personality, equality and common welfare and carry social responsibilities; this is not strict Hohfeldian correlativity (PDF pp.348-353)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 32

Who treats rights as social conditions of personality, equality and common welfare?

- A. Moral claim vs full enforceable right
- B. Locke
- C. Robert Nozick
- D. Laski

Answer: D

Explanation: The canonical Basic owner pairs **gives a social-democratic account in which rights are conditions for personality, equality and common welfare and carry social responsibilities; this is not strict Hohfeldian correlativity (PDF pp.348-353)** with **Laski**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 33

Which option correctly states the source-grounded meaning or position associated with **Marx**?

- A. criticises the limits of bourgeois rights and the separation of formally equal political citizens from unequal civil society. Leninist theory and the records of particular socialist regimes are separate questions and should not be attributed back to Marx as one undifferentiated position (PDF pp.354-358, 365).
- B. Social, economic and cultural rights such as work, education, health and social security (PDF pp.340-341, 361, 364-365).
- C. a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
- D. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gauba, PDF p.345).

Answer: A

Explanation: The canonical Basic owner pairs **Marx** with **criticises the limits of bourgeois rights and the separation of formally equal political citizens from unequal civil society. Leninist theory and the records of particular socialist regimes are separate questions and should not be attributed back to Marx as one undifferentiated position (PDF pp.354-358, 365)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 34

Who argues that formally equal rights may conceal class power, private property and material dependence?

- A. Natural-rights theory
- B. Marx
- C. T.H. Green
- D. Alasdair MacIntyre

Answer: B

Explanation: The canonical Basic owner pairs **criticises the limits of bourgeois rights and the separation of formally equal political citizens from unequal civil society. Leninist theory and the records of particular socialist regimes are separate questions and should not be attributed back to Marx as one undifferentiated position (PDF pp.354-358, 365).** with **Marx**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 35

Which option correctly states the source-grounded meaning or position associated with **Robert Nozick**?

- A. A contested grouping of collective or solidarity claims.
- B. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.
- C. defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).
- D. Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).

Answer: C

Explanation: The canonical Basic owner pairs **Robert Nozick** with **defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 36

Who defends side-constraints, entitlement and an anti-redistributive minimal state?

- A. Legal-rights theory
- B. Ernest Barker
- C. Firestone-Rowbotham contrast
- D. Robert Nozick

Answer: D

Explanation: The canonical Basic owner pairs **defends strong individual rights and a minimal anti-redistributive state, limited mainly to protection and enforcement (PDF p.365).** with **Robert Nozick**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 37

Which option correctly states the source-grounded meaning or position associated with **Alasdair MacIntyre**?

- A. challenges the grounding of abstract universal rights-talk; he does not simply argue that community overrides every individual right (PDF pp.365-366).
- B. restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.
- C. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective exercise may require state protection from private coercion (PDF pp.361-363).

D. Bentham treats rights as creatures of law - they exist only once the state recognizes and enforces them (PDF pp.344-345).

Answer: A

Explanation: The canonical Basic owner pairs **Alasdair MacIntyre** with **challenges the grounding of abstract universal rights-talk; he does not simply argue that community overrides every individual right** (PDF pp.365-366). The other options are valid source terms or statements, but belong to different pairings.

MCQ 38

Who criticises abstract universal rights-talk from the standpoint of traditions and social practices?

- A. Historical-rights theory
- B. Alasdair MacIntyre
- C. Laski
- D. "First generation"

Answer: B

Explanation: The canonical Basic owner pairs **challenges the grounding of abstract universal rights-talk; he does not simply argue that community overrides every individual right** (PDF pp.365-366). with **Alasdair MacIntyre**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 39

Which option correctly states the source-grounded meaning or position associated with **Firestone-Rowbotham contrast**?

- A. rights to which an individual is entitled by virtue of being human; they remain relevant even where ordinary citizenship rights are absent or exhausted (PDF p.338).
- B. participation rights enabling eligible citizens to vote, influence public decisions and seek office under reasonable citizenship, age and procedural conditions (PDF pp.361-362).
- C. Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour.
- D. Burke roots rights in prescriptive inheritance and evolved constitutional practice rather than abstract declaration (PDF pp.346-347).

Answer: C

Explanation: The canonical Basic owner pairs **Firestone-Rowbotham contrast** with **Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 40

Which distinction separates reproductive sex-class analysis from socialist-feminist analysis of labour, capitalism and history?

- A. Ideal/personality (Green, Barker) rights theory
- B. Marx
- C. "Second generation"
- D. Firestone-Rowbotham contrast

Answer: D

Explanation: The canonical Basic owner pairs **Firestone foregrounds reproductive and sex-class power, whereas Rowbotham joins patriarchy to socialist analysis of class and labour**. with **Firestone-Rowbotham contrast**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 41

Which option correctly states the source-grounded meaning or position associated with **"First generation"**?

- A. Civil and political rights such as speech, movement, fair trial and voting.
- B. justified normative or legal positions. Hohfeld's vocabulary distinguishes claim-rights, liberties, powers and immunities; Gauba's chapter especially emphasises claims restraining arbitrary state power and requiring conditions for a better life (PDF pp.339-340).
- C. every claim-right has a correlative duty-holder, but a liberty is not itself always another person's claim-duty relation. Laski's wider rights-and-duties thesis is social-ethical rather than strict Hohfeldian correlativity.
- D. Green ties rights to conditions needed for moral personality; Barker's full right needs both personality-grounding and legal guarantee, an either-alone yields only a quasi-right (PDF pp.342-343, 345).

Answer: A

Explanation: The canonical Basic owner pairs **"First generation"** with **Civil and political rights such as speech, movement, fair trial and voting**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 42

Which mnemonic category usually groups civil and political rights while still requiring positive institutions?

- A. Locke
- B. "First generation"
- C. Robert Nozick
- D. "Third generation"

Answer: B

Explanation: The canonical Basic owner pairs **Civil and political rights such as speech, movement, fair trial and voting** with **"First generation"**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 43

Which option correctly states the source-grounded meaning or position associated with **"Second generation"**?

- A. a duty of restraint, such as non-interference with thought or expression (PDF pp.340-341). It is a dimension of obligation, not a sealed class of rights.
- B. personality or conscience may ground an ideal claim, but that alone is not sufficient for legal enforceability; state recognition alone creates a legal right, but is not sufficient for moral legitimacy. Barker's full-right synthesis needs both personality-grounding and legal guarantee (Gauba, PDF p.345).
- C. Social, economic and cultural rights such as work, education, health and social security (PDF pp.340-341, 361, 364-365).
- D. grounds rights in life, liberty and property and permits resistance when government seriously breaches or forfeits its protective trust, not whenever it imperfectly performs a duty (PDF pp.341-342, 365).

Answer: C

Explanation: The canonical Basic owner pairs **"Second generation"** with **Social, economic and cultural rights such as work, education, health and social security** (PDF pp.340-341, 361, 364-365). The other options are valid source terms or statements, but belong to different pairings.

MCQ 44

Which mnemonic category groups economic, social and cultural rights with both progressive and immediate duties?

- A. T.H. Green
- B. Alasdair MacIntyre

- C. Restriction test
- D. "Second generation"

Answer: D

Explanation: The canonical Basic owner pairs **Social, economic and cultural rights such as work, education, health and social security (PDF pp.340-341, 361, 364-365)** with **"Second generation"**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 45

Which option correctly states the source-grounded meaning or position associated with **"Third generation"**?

- A. A contested grouping of collective or solidarity claims.
- B. a duty to protect or provide, such as education, medical care or legal aid (PDF pp.340-341). Many civil liberties also require positive protection against private interference.
- C. Locke grounds rights in life, liberty and property as pre-political entitlements, permitting resistance after serious breach of political trust (PDF pp.341-342, 365).
- D. treats rights as socially recognised conditions of moral personality and common good, not as atomistic pre-social possessions (PDF pp.342-343).

Answer: A

Explanation: The canonical Basic owner pairs **"Third generation"** with **A contested grouping of collective or solidarity claims**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 46

Which mnemonic category groups solidarity claims whose legal status and enforcement differ claim by claim?

- A. Ernest Barker
- B. "Third generation"
- C. Firestone-Rowbotham contrast
- D. Human rights

Answer: B

Explanation: The canonical Basic owner pairs **A contested grouping of collective or solidarity claims** with **"Third generation"**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 47

Which option correctly states the source-grounded meaning or position associated with **Restriction test**?

- A. legal protections such as expression, religion, movement, association, fair trial and personal freedom against arbitrary public power; their effective exercise may require state protection from private coercion (PDF pp.361-363).
- B. Bentham treats rights as creatures of law - they exist only once the state recognizes and enforces them (PDF pp.344-345).
- C. restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.
- D. a full right has a double source-development of personality and legal guarantee; either source alone yields only a quasi-right (Gaub, PDF p.345).

Answer: C

Explanation: The canonical Basic owner pairs **Restriction test** with **restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality**. **"Public order" or "general welfare" is not a free-standing limitation clause for every right**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 48

Which test requires a legal basis, a permitted aim, necessity and proportionality for an ordinary rights limitation?

- A. Laski
- B. "First generation"
- C. Rights
- D. Restriction test

Answer: D

Explanation: The canonical Basic owner pairs **restrictions must rest on law, pursue an aim permitted for the particular right, and satisfy necessity and proportionality. "Public order" or "general welfare" is not a free-standing limitation clause for every right.** with **Restriction test**. The other options are valid source terms or statements, but belong to different pairings.

PYQS AND ANSWER PRACTICE

Cross-application ownership note: These are verified Philosophy Optional questions whose primary owner is Philosophy Paper II - Individual and State. They are not re-routed to Political Theory; they are included because this topic provides a directly usable supporting framework.

Solved PYQ 1 - 2018 Q4(a), 20 marks

Question: "Human rights and human dignity would no longer be the product of a particular culture, rather a common human aspiration for an ideal world." Discuss.

Model solution

Directive: *Discuss* -> present both sides and adjudicate, not a one-sided essay.

Thesis. The statement is broadly defensible once we separate the *genealogy* of rights-language from the *aspiration* it protects. The modern grammar of human rights has a particular (largely post-Enlightenment, Western) provenance, but the core it guards -- human **dignity** and protection from cruelty -- answers a common human aspiration that many civilisational idioms voice in their own terms.

Concede the genealogy. The formal charters and the vocabulary of "rights" crystallised in a particular cultural-historical setting; to that extent rights- talk *was* the product of a particular culture.

Defend the universality of the aspiration. Distinguish **universality of the aspiration** from **uniformity of articulation**. What is common is the concern for dignity and against cruelty; what varies is the vocabulary. Will theory and interest theory both locate the point of rights in protecting agency and well- being -- goods no culture disavows. India's idiom expresses human worth through dharma, ahimsa and sarvodaya rather than atomistic claims, yet reaches the same protective floor.

Objection (relativist). Conceptions of person, authority and obligation differ; a single grammar risks cultural hegemony.

Reply. A *thin* universal core (dignity, no cruelty) plus *thick* plural articulation -- an overlapping consensus -- avoids both hegemony and relativist nihilism.

India-centric evidence. The Constitution fuses liberal Fundamental Rights with directive-principle welfare and Fundamental Duties (Article 51A) -- a syncretic articulation of the common aspiration, not a mere import.

Graded verdict. Agree with qualification: human dignity *is* a common aspiration, so the statement holds of the *aspiration*; of the institutional *grammar* it remains partly aspirational rather than already accomplished.

MEMORY: Why this earns marks - it separates aspiration from formulation, voices and answers the relativist objection via overlapping consensus, and anchors the Indian constitutional synthesis instead of asserting a bare "rights are universal."

Solved PYQ 2 - 2019 Q2(a), 20 marks

Question: Do rights make citizens accountable to the State? Argue in the context of the present Indian scenario.

Model solution

Directive: *Argue* -> take and defend a reasoned position.

Thesis (category correction). Rights *primarily* make the **State accountable to citizens**, not citizens accountable to the State; but because rights also carry responsibilities, a *reciprocal* accountability exists. The stem's implied one-way direction is the thing to correct.

Distinguish two ideas. *Accountability* = answering for the use of power; *responsibility* = the duties that accompany a right. Rights institutionalise the first against the State and generate the second in the citizen.

Direction of accountability. Locke's *fiduciary trust* is cashed out institutionally as judicial review, a free press and periodic elections: these make public power answerable to the individual. That is the core sense in which rights bear on accountability.

Reciprocity. My right to free expression carries a duty not to defame or incite -- Article 19 freedoms are subject to **reasonable restrictions** -- so rights also make citizens *responsible*. Claim-rights are correlative to duties (Hohfeld), which blocks the "rights breed pure entitlement" worry.

Indian scenario. Part III makes the State *justiciably* answerable through judicial review; Fundamental Duties (Article 51A) are **non-justiciable** and express citizen responsibility -- they do *not* make citizens legally *accountable* to the State. So the enforceable vector runs State-ward.

Objection. Does this not ignore civic obligation? **Reply.** No -- reciprocity retains citizen responsibility; it only denies that rights make the citizen *subordinate-accountable* to the State.

Graded verdict. Rights make the State accountable to citizens and citizens co-responsible; corrected to reciprocity, not one-way subordination.

MEMORY: Why this earns marks - it performs a reasoned category correction, uses the accountability/responsibility distinction, and pins Article 19 + Part III + Article 51A precisely without overclaiming enforceability.

Solved PYQ 3 - 2020 Q2(c), 15 marks

Question: Is Indian tradition antagonistic to Individual Rights? Consider it by taking recourse to the doctrine of Human Rights.

Model solution

Directive: answer by *taking recourse to the doctrine of Human Rights* -- keep the human-rights lens throughout.

Thesis. Indian tradition is **not** inherently antagonistic to individual rights; it begins from a *different starting point* -- duty, dharma, social embeddedness -- that is compatible with, and can ground, human rights.

Via the human-rights doctrine. The universality of **dignity** as a common human aspiration (not a purely Western artefact) lets the Indian idiom count as an *alternative articulation* of human worth: dharma (reciprocal obligation), ahimsa (non-injury) and antyodaya (the last person first) protect the person without atomistic rights-talk.

Different grammar, not denial. Gandhi's duty-first stance ("rights follow performed duty") is *anti-atomism*, not anti-rights; it can even license disobedience to unjust power.

Honest tension. Some traditional practices -- caste hierarchy, untouchability -- *did* subordinate the individual. **Ambedkar's** critique names this frankly.

Correction within the tradition. The Constitution -- itself a modern Indian document -- abolishes untouchability, guarantees equality and Fundamental Rights, and thereby reconstructs the tradition's affirmative strand into justiciable human rights.

Objection. Does duty-centrism subordinate the individual? **Reply.** Its duties run to conscience and community and are paired, constitutionally, with enforceable rights -- so the individual is secured, not dissolved.

Graded verdict. Indian tradition is *plural*: strands both constrain and affirm the individual. Read through the human-rights doctrine, the affirmative strand (dignity, later constitutionalised) shows the tradition is not inherently

antagonistic to individual rights.

MEMORY: Why this earns marks - it stays inside the human-rights doctrine as the stem demands, distinguishes different-starting-point from antagonism, and concedes the caste constraint with the Ambedkar/constitutional correction rather than romanticising.

Solved PYQ 4 - 2021 Q4(c), 15 marks

Question: Evaluate whether the social contract theory adequately addresses the different issues of human rights.

Model solution

Directive: *Evaluate* -> weigh adequacy, deliver a verdict.

Thesis. Social contract theory addresses human rights *partially*: it grounds limits on power and the protection of civil-political rights, but abstracts from real inequality and so under-addresses socio-economic rights.

Doctrine. Hobbes secures the right to life indirectly through order; **Locke** makes natural rights (life, liberty, property) *precede* the state, treats government as a fiduciary **trust**, and grounds a right of resistance on breach -- the strongest contractarian basis for human rights; **Rousseau** secures civic freedom through the general will.

Where it is adequate. Locke supplies rights-as-limits, consent and resistance -- a genuine normative floor and a check on tyranny.

Where it is inadequate. The state-of-nature device *abstracts* from structural inequality; propertied contractors are privileged (the Marxist and feminist critiques); "consent" is largely fictional for those born into the order; and the model is thin on positive/welfare rights.

Reply / supplement. The modern *hypothetical* contract (routed to Justice) repairs the consent problem as a test of justification; the welfare/capabilities supplement adds the social minimum.

India-centric evidence. The Constitution pairs contract-style Fundamental Rights with **Directive Principles** (welfare) -- an implicit admission that formal rights need a social minimum to be real.

Graded verdict. Adequate for civil-political rights *as limits*; inadequate for socio-economic human rights without a welfare/capabilities supplement.

MEMORY: Why this earns marks - it grades adequacy by rights-type, names the abstraction-from-inequality problem, uses the FR-DPSP pairing as India evidence, and routes the modern contract without padding.

Solved PYQ 5 - 2022 Q4(b), 15 marks

Question: Does idea of unconditional rights necessarily lead to anarchy? Critically examine.

Model solution

Directive: *Critically examine* -> test the inference, concede any grain of truth, then judge.

Thesis. No -- unconditional rights do *not necessarily* lead to anarchy. The inference trades on an ambiguity in "unconditional."

Fix the equivocation. Distinguish **unconditional/absolute** (limitless, overriding everything) from **inalienable** (cannot be forfeited or sold). Human rights are properly *inalienable yet limitable*, not absolute.

Why bounded rights do not entail anarchy. Mature rights carry *internal limits* (Mill's **harm principle**) and *correlative duties* (Hohfeldian claim- rights); in India, Article 19 freedoms are expressly subject to **reasonable restrictions**. Rights so bounded are compatible with -- indeed require -- order.

Concede the grain of truth. A *naive absolutism* -- every claim trumps, no limits, no duties -- would corrode order; the examiner wants this acknowledged. The anarchist and communitarian critiques (rights-inflation, atomism) sharpen the tension.

Reply. The remedy is *bounded* rights + duties + accountability, not the abolition of rights. **Ambedkar's** warning against the "grammar of anarchy" (1949) is the India-centric guardrail: once constitutional redress exists, boundless agitation is unjustified.

Graded verdict. *Unconditional/absolute* rights could threaten order; but rights are properly inalienable-yet-limited, so the idea of rights does not *necessarily* lead to anarchy. The word "necessarily" is where the claim fails.

MEMORY: Why this earns marks - it dismantles the modal "necessarily," fixes the unconditional/inalienable equivocation, concedes the grain of truth, and anchors Article 19 + the grammar-of-anarchy guardrail.

Solved PYQ 6 - 2023 Q2(b), 15 marks

Question: Do you agree that duty and accountability must be given priority over rights for the better functioning of a State? Justify your answer.

Model solution

Directive: *Do you agree* -> stake a position with reasons and qualification.

Thesis. Agree with qualification. *Accountability* rightly has a priority (unanswerable power voids any right), and foregrounding *duty* is defensible in a culture of entitlement -- but a *strong ordering* that subordinates rights is dangerous.

Disaggregate the claim. Treat duty and accountability separately. (i) **Accountability-priority is sound:** it *supports* rights by making power answerable through political, legal and moral channels. (ii) **Duty-priority is partly sound:** Gandhi's earned-rights and civic responsibility curb rights- inflation -- but "duty first" can be weaponised to *silence* just claims.

Doctrine. Rights and duties are **reciprocal / co-original** (claim-rights are correlative to duties -- Hohfeld). Fundamental Duties (Article 51A) are **non-justiciable** exhortation -- by design they cannot be used as a lever to cancel rights.

Objection. Duty-first regimes historically suppress dissent (order over liberty). **Reply.** Keep a *sequencing caveat* -- foreground duty pedagogically -- without demoting rights to conditional grants of the State.

India-centric evidence. The constitutional order makes rights justiciable and duties exhortatory, encoding exactly this asymmetry: power must answer; duties are urged; rights are secured.

Graded verdict. Accountability first (it legitimises coercion); duty and rights *co-original* with a sequencing caveat -- not a flat "duty over rights."

MEMORY: Why this earns marks - it splits duty from accountability, grants each its due, blocks the authoritarian misuse of duty-talk, and lands a graded verdict with Article 51A precision.

Solved PYQ 7 - 2025 Q4(c), 15 marks

Question: "Duties are of the nature of obligation while Rights are of the nature of entitlement. Therefore there is no necessary connection between the two." Do you agree with this statement? Give reasons and justification for your answer.

Model solution

Directive: *Do you agree* -> evaluate the quoted claim and qualify.

Thesis. Disagree with qualification. There *is* a necessary connection for one class of rights -- **claim-rights are strictly correlative to duties** -- while for liberties the connection is looser. So "no necessary connection" is false as a *universal* claim, even though the duty/right *modes* genuinely differ.

Concede the modal distinction. Duties are of the nature of **obligation** (what one is bound to do); rights are of the nature of **entitlement** (what one may claim). As modes they are categorically distinct -- the grain of truth in the statement.

But apply Hohfeld. A **claim-right** is *by definition* correlative to a **duty** (my claim-right = your duty); a **liberty** correlates only to a "no-right," not to a duty. Hence the connection is *necessary for claim-rights* and *contingent for liberties*.

Add civic duties. Some duties are *non-correlative* -- Fundamental Duties (Article 51A) answer to no one's claim-right -- which supports the "distinct modes" point *without* severing all connection.

Objection. Are there not rights with no duty-bearer (manifesto/aspirational rights)? **Reply.** Those are *incompletely institutionalised* claims; once institutionalised they acquire duty-bearers -- so they qualify, not refute, correlativity.

India-centric evidence. Part III rights impose correlative duties on the State (and others); Article 51A duties are non-justiciable and largely non-correlative -- the system exhibits *both* correlative and independent elements.

Graded verdict. The modes differ, but a **necessary connection holds for claim-rights**; therefore disagree with the blanket "no necessary connection," while granting the distinctness of duty-as-obligation and right-as-entitlement.

MEMORY: Why this earns marks - it uses Hohfeld to split necessary (claim-rights) from contingent (liberties), grants the modal distinction, anchors Article 51A + Part III, and refuses the false universal in the quotation.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original Mains Practice 1 - 10 marks

Question: Distinguish human rights, civil liberties and democratic rights. Why are they overlapping rather than hierarchically nested? Answer in about 150 words.

Model solution

Introduction: Human rights, civil liberties and democratic rights differ in grounding and primary function, but no rigid nesting captures their practical relationship.

Core analysis: Human rights attach to persons by virtue of human dignity and include civil-political as well as socio-economic and cultural claims. Civil liberties secure legal freedom against arbitrary power-speech, association, movement, religion, fair trial and personal liberty-and may extend to non-citizens. Democratic rights enable eligible citizens to vote, organise, influence decisions and seek office. The categories overlap because participation needs speech and association, while civil liberty is strengthened by accountable government.

Critical evaluation: They remain analytically distinct: elections can coexist with censorship, and a non-citizen may possess personal liberty without electoral rights. The right answer identifies holder, purpose and duty-bearer rather than assuming one universal hierarchy.

Conclusion: The three categories are best distinguished by holder and primary function, yet they overlap in practice because dignified agency, legal freedom and democratic participation mutually support one another without forming one rigid hierarchy.

Why this earns marks: It defines the issue, states the controlling distinction, adds one limitation and closes with a direct verdict suited to a 10-mark answer.

Original Mains Practice 2 - 10 marks

Question: Explain why negative and positive rights are better understood as dimensions of obligation. Answer in about 150 words.

Model solution

Introduction: The negative-positive distinction concerns what duty-bearers must do, not two sealed kinds of rights.

Core analysis: A negative dimension requires restraint: public authority must not censor lawful expression or inflict arbitrary detention. A positive dimension requires protection or provision: the state must maintain courts, protect speakers from violent suppression, investigate abuse or provide education and legal aid. The same right can therefore generate both duties. Speech needs non-interference and an institutional order capable of protecting equal exercise; personal liberty needs non-arrest without law and effective remedies when arrest occurs.

Critical evaluation: Some socio-economic duties are progressively realised, but non-discrimination and good-faith steps may be immediate. Treating all civil rights as negative and all social rights as positive hides these mixed obligation structures.

Conclusion: Negative and positive rights identify duties of restraint and duties to protect or fulfil, but most actual rights combine both dimensions and therefore resist classification as purely one or the other.

Why this earns marks: It defines the issue, states the controlling distinction, adds one limitation and closes with a direct verdict suited to a 10-mark answer.

Original Mains Practice 3 - 15 marks

Question: Compare natural, legal, historical and personality theories of rights. Does Barker reconcile moral validity with legal guarantee? Answer in about 200 words.

Model solution

Introduction: Theories of rights disagree over whether a right derives from human nature, positive law, inherited practice or the conditions of moral personality.

Core analysis: Lockean natural-rights theory gives claims moral force before state recognition, enabling criticism of unjust authority, but faces indeterminacy about content. Bentham's legal theory makes enforceability and public definition central, yet cannot by itself judge an unjust enactment. Burke's historical theory grounds rights in prescriptive inheritance and evolved institutions, offering continuity but risking protection of inherited exclusion. Green's personality theory treats rights as socially recognised conditions of moral development and common good. Barker combines this moral source with legal guarantee: personality without law yields aspiration, while law without moral purpose yields a merely positive position.

Critical evaluation: Barker reconciles validity and guarantee conceptually, not automatically. A legally guaranteed claim may remain unjust or unusable, and a plausible personality interest still requires specification, institutions and remedy. His synthesis is a two-part test, not proof of effective realisation.

Conclusion: Barker offers the strongest bridge between moral purpose and institutional force, but legal guarantee and personality-grounding still require separate scrutiny because neither automatically proves effective or just realisation.

Why this earns marks: It combines definition, named doctrinal evidence, comparison and a counter-position before giving a qualified 15-mark verdict.

Original Mains Practice 4 - 15 marks

Question: Critically examine the generations-of-rights framework in light of the indivisibility of human rights. Answer in about 200 words.

Model solution

Introduction: The generations framework groups civil-political, socio-economic-cultural and solidarity claims, but it is a pedagogic device rather than a universal history or Gauba's own classification.

Core analysis: The first-generation label is often associated with restraint, yet speech, fair trial and voting require courts, administration and protection. Second-generation rights such as health, work and education involve progressive realisation but also immediate duties including non-discrimination and concrete steps. Third-generation language is especially uneven: self-determination is a binding right in common Article 1 of both Covenants, whereas development and environmental claims have different sources and enforcement paths. Anti-colonial histories also disrupt the chronology because collective self-determination sometimes preceded effective individual rights.

Critical evaluation: Indivisibility does not erase differences in duty, remedy or institutional competence. It means that rights support one another and cannot be ranked as inherently dispensable. Use generations to organise content, then analyse each claim's actual legal status and obligation structure.

Conclusion: The generations framework is useful only as a mnemonic: rights are historically interdependent, civil-political rights need institutions, socio-economic rights contain immediate duties, and solidarity claims possess different legal statuses.

Why this earns marks: It combines definition, named doctrinal evidence, comparison and a counter-position before giving a qualified 15-mark verdict.

Original Mains Practice 5 - 20 marks

Question: Evaluate Laski, Marx, Nozick, MacIntyre and feminist approaches to rights, power and common welfare. Answer in about 250 words.

Model solution

Introduction: Modern rights theory divides over whether rights chiefly protect individual choice, secure social development or reproduce and challenge structures of power.

Core analysis: Laski treats rights as social conditions of personality, equality and common welfare and therefore joins liberty to education, security and reciprocal responsibility. Marx exposes the limitation of formal political equality within unequal property and class relations; his critique should be separated from Leninist theory and the record of particular socialist regimes. Nozick moves in the opposite direction: strong side-constraints and entitlement support a minimal anti-redistributive state. MacIntyre questions the grounding of abstract universal rights-talk and restores traditions and practices, without proving that community may override every individual claim. Feminist theory reveals how apparently neutral rights can ignore reproductive power, unpaid labour and patriarchal institutions; Firestone and Rowbotham supply distinct radical and socialist mechanisms.

Further development: The theories also imply different institutional remedies. Laski supports welfare and equal social conditions; Marx demands transformation of property and class power; Nozick restricts compulsory action to protection and rectification; MacIntyre relocates moral reasoning within traditions and practices; feminist approaches reconstruct law, family and political economy together. Comparison should therefore judge both the protected value and the power relation each remedy may create.

Critical evaluation: Each position overreaches when universalised. Welfare can become paternalism, structural critique can sacrifice liberty, libertarian entitlement can ignore unequal background power, and community can silence dissent. A defensible settlement protects a universal agency floor while democratising the social conditions in which rights are exercised.

Conclusion: These approaches reveal that rights are simultaneously protections, social conditions and contested distributions of power; a defensible settlement protects individual agency while exposing class, community and gender domination.

Why this earns marks: It develops multiple dimensions and named evidence units, tests the strongest objection and reply, and reaches a balanced 20-mark judgment.

Original Mains Practice 6 - 20 marks

Question: Distinguish moral validity, legal recognition, judicial enforceability and effective realization of rights with reference to the Covenants, constitutional limits, emergencies and social movements. Answer in about 250 words.

Model solution

Introduction: A right can be morally justified, legally recognised, judicially enforceable and effectively enjoyed in different degrees; these are connected but non-identical stages.

Core analysis: Moral validity supplies reasons grounded in dignity or justice. Legal recognition converts a claim into positive law. Justiciability adds an institution and remedy, while effective realisation depends on access, resources, administration and social power. The UDHR is a standard, whereas the ICCPR and ICESCR bind States Parties: the former stresses immediate respect, ensure and remedy duties; the latter combines progressive realisation with immediate non-discrimination and good-faith steps. Domestic restrictions must be lawful, tied to an aim permitted for the specific right, necessary and proportionate. Emergency derogation is narrower than ordinary limitation and leaves non-derogable rights intact. Horizontal violations may require direct constitutional rules, legislation or positive protection against private actors.

Further development: This chain also explains why implementation evidence cannot be substituted for legal analysis. A policy may improve access without recognising an individual entitlement, while a judicial declaration may remain ineffective when procedures, information or resources block use. Social movements connect the stages by reframing experience as an injustice, demanding recognition, testing remedies and monitoring whether institutions alter the conditions that generated the violation.

Critical evaluation: Courts are only one part of the chain. Legislatures define entitlements, executives implement them, commissions investigate, treaty bodies monitor and social movements make exclusion visible. A welfare scheme may fulfil a right without creating an individual remedy. Effective rights therefore require institutional plurality and public mobilisation without collapsing every moral demand into an immediately enforceable claim.

Conclusion: Rights become politically real through a chain from justification to recognition, remedy and effective access; breaking any link produces aspiration without law, law without remedy or remedy without usable freedom.

Why this earns marks: It develops multiple dimensions and named evidence units, tests the strongest objection and reply, and reaches a balanced 20-mark judgment.